

Chubb Commercial Excess and Umbrella Insurance

Rapid changes in technology and an increasingly litigious society have created new and complex exposures for companies both large and small.

As lawsuits continue on the upswing and jury awards increase, can you afford the financial burden of such litigation?

The quality of an umbrella policy's terms and conditions is one of the principal criteria for selecting your umbrella insurer. Take a look at the offerings of our excess umbrella policy.

Features	Benefits
Clear, simplified policy language and structure	Makes the policy easy to follow and understand.
Flexibility to write monoline, as well as supported, policies	Provides the capability to write over your existing primary program, whether or not it is with Chubb.
Excess Follow Form insurance incorporates primary coverage provisions	Coverage A adopts the provisions of your scheduled primary insurance. This means greater continuity in your insurance portfolio than is afforded by stand-alone Umbrella policies. It also allows for easy tailoring of your Umbrella to meet your unique needs in nonstandard areas such as errors & omissions liability (e.g., miscellaneous professional), global, liquor, aviation and marine liabilities.
Significant limits available	Enables you to construct your liability program with fewer carriers and promote consistency in your insurance program.
Financially solid capacity	Provides peace of mind that future liability claims will be met by the insurance you purchase today.
We'll pay losses on your behalf (where permitted by law)	Less disruptive to your cash flow. Avoids your having to pay losses first, as under an indemnification policy, and seek reimbursement afterward.

Separate coverages offer you a flexible coverage platform to help protect against catastrophic liability losses:

- **Excess Follow Form Coverage A**—Affords vertical continuity with your primary coverages.
- **Umbrella Liability Coverage B**—Closes gaps in your primary liability program.
- **Blended Pollution Coverage C**—Can be endorsed to include Named Perils/Time Element Pollution.

Insurance drops down over eroded or exhausted primary limits of insurance:

The insurance will apply if primary limits are reduced by losses:

- Happening during the term of our policy
- Happening during the term of the primary policy, even if the term began before ours
- Covered by the primary policy, even if not within the scope of our policy

In the case of subsequent covered losses, our policy would apply immediately excess of the eroded or exhausted primary limits.

Features	Benefits
Worldwide protection	Protects you wherever your operations or products may be.
No self-insured retention under Umbrella Liability Coverage B	Helps protect you from losses not covered by your primary liability program. You do not pay the first \$10,000 of such losses covered by our policy (where allowed by state).
Affirmative duty to defend, rather than merely a right to participate in your defense (where permitted by law)	Chubb defends you against a suit for damages covered by our policy. You are not required to reimburse us for these costs.
Defense costs and pre- and post- judgment interest will not erode your limits	Preserves your policy limits for paying claims. Defense of suits and interest expense will not erode the limits of insurance.

Features	Benefits
Excess Follow Form application of limits under Coverage A (nonadvertising/personal injury and nonproducts/completed operations losses)	Provides you with excess limits of insurance that apply in the same manner as your primary limits. If, for example, your primary limits apply per location, per project or per policy, ours will, too. If there is no primary aggregate limitation, our policy also will not impose an aggregate.
No requirement for reinstatement or replacement of eroded or exhausted primary limits	Eliminates the necessity and expense of rebuilding your primary insurance program should it be eroded or exhausted by losses.
Newly acquired or formed organizations included as insureds	Protects you for new exposures (for losses after acquisition) of qualifying new organizations, without time or reporting limitations.

Several separate aggregates mean more limits of insurance available to pay covered losses.

- Separate aggregate limit for advertising/personal injury losses
- Separate aggregate limit for products/completed operations losses
- Separate aggregate limit for losses not covered by primary insurance (Umbrella Liability Coverage B)

Features	Benefits
Additional insureds covered in your primary insurance are automatically included in the Excess Follow Form insurance of our policy	Protects persons and organizations who are insureds in primary policies, including joint ventures, partnerships and limited liability companies.
Automatic additional insured status for lessors of equipment and premises	Helps you comply with commitments made under leases, without having to endorse your insurance.
Volunteer workers included as insureds	Provides protection to volunteers working for you.
Definition of bodily injury includes mental anguish, mental injury, shock or humiliation resulting from physical injury	Helps protect you by paying losses beyond the scope of physical injury.
Failure to maintain primary insurance, or insolvency of primary insurer, does not invalidate our policy	The insurance you purchased from us will be available, as though primary insurance were maintained and collectible.
Crisis Assistance	Additional \$300,000 aggregate limit or 3% of each occurrence limit shown on the policy (whichever is less).

Broader protection than standard primary policies.

Umbrella Coverage B includes:

- Definition of personal injury includes discrimination, harassment and segregation (where permitted by law)
- Nonowned aircraft with crew
- Nonowned watercraft
- Autos outside the United States, Puerto Rico or Canada
- Advertising/personal injury contractual liabilities
- Advertising/personal injury for insured's media businesses
- Damage to alienated premises
- Business and host liquor liability
- War and insurrection
- Loss events and suits outside the United States

With Chubb, you can be confident your excess umbrella insurance has the protection you need for years to come.

To learn more about how Chubb can help manage your excess umbrella needs, now and in the future, please contact your local Chubb Underwriter.

Chubb. Insured.SM

Chubb is the marketing name used to refer to subsidiaries of Chubb Limited providing insurance and related services. For a list of these subsidiaries, please visit our website at chubb.com. Insurance provided by U.S. based Chubb underwriting companies. All products may not be available in all states. Coverage is subject to the language of the policies as actually issued. Surplus lines insurance sold only through licensed surplus lines producers. Form 07-01-0079 (Rev. 6/16)